

SUMMARY OF INCIDENT

Investigator: Colon	Team # 2	Supervisor:
Date of Report: August 17, 1995	C.C.R.B. No.: 9400021	Classification: Force/Discourtesy/ Eth. SL
Date and Time of Incident: January 3, 1994 - 2030 Hrs.	Date and Time Reported to C.C.R.B.: January 3, 1994 - 2129 Hrs.	
Location of Incident: 199 Tapscott Street		Precinct: 073

COMPLAINANT VICTIM ATTY	NAME § 87(2)(b)	STREET	CITY/MOROUGH	STATE	ZIP CODE
	§ 87(2)(b)				
	NONE				
Representing					

WITNESSES	§ 87(2)(b)
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MEMBERS OF THE SERVICE

RANK	NAME	SUBJECT	WITNESS	SHIELD NO.	CMD.	TAX REG. NO.	DUTY STATUS ON OFF	ASSIGNMENT	RACE
PO	MICHELLE NEWTON	☐	☒	24605	073	878178	☒ ☐	PATROL	W
PO	JOSEPH DEMORATO	☒	☐	27483	073	893946	☒ ☐	PATROL	W
PO	RAYMOND TONINS	☒	☐	822	073	902480	☒ ☐	PATROL	W
PO	THOMAS O'ROURKE	☒	☐	22700	073	902141	☒ ☐	PATROL	W
PO	LUIGI PINELLO	☒	☐	17154	073	902910	☒ ☐	PATROL	W
PO	DAVID WINTER	☒	☐	4033	073	900005	☒ ☐	PATROL	W
PO	ROBERT QUIERY	☐	☒	25312	073	898326	☒ ☐	PATROL	W
PO	EDWARD SCHNEIDER	☒	☐	1752	073	902952	☒ ☐	PATROL	W
PO	KEVIN CARRO	☐	☒	10555	073	902708	☒ ☐	PATROL	W

ALLEGATIONS	SOURCE	APPENDIX ENCLOSURE NO.
A - COMPLAINANT/VICTIM ALLEGED THAT SUBJECT OFFICERS PUSHED HER AND OTHERS TO THE GROUND.	U.F. 245	#1B
B - COMPLAINANT/VICTIM ALLEGED THAT SUBJECTS OFFICERS BEAT THEM.	U.F. 245 & INTERVIEW	#1B, #11 & #14
C - VICTIM ALLEGED THAT SUBJECT OFFICERS CHOKED HIM.	INTERVIEW	#14
D - COMPLAINANT/VICTIM ALLEGED THAT TOLD THEM, "YOU BLACK NIGGERS IS NOT COMING HERE TO MAKE A COMPLAINT.	U.F 245	#1B
E - VICTIM ALLEGED THAT THAT HE WAS SLAMMED ON THE GROUND.	INTERVIEW	#14
F - VICTIM ALLEGED THAT SUBJECT OFFICER TOLD A GROUP OF GUYS, "I DON'T GIVE A FUCK".	INTERVIEW	#11A
G - VICTIM ALLEGED THAT SUBJECT OFFICERS HIT HIM WITH NIGHTSTICKS AND RADIOS ON HIS LEGS.	INTERVIEW	#14

COMMUNICATIONS TO BE ANSWERED:

☐ P.C. Brief	☐ Mayor's Office	☐ I.A.D. Review	☐ Other (specify)
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This incident occurred on January 3, 1994 at 2030 Hrs., at the following locations: § 87(2)(b) and the 73rd Precinct. Complainant/victim (s) alleged that force, discourtesy, and ethnic slur was used. Enclosure #1 & #1A

Ms. § 87(2)(b) complainant/victim stated that a male (unknown) was writing graffiti on an ambulance and that's when the police responded. Ms. § 87(2)(b) alleged that she was pushed to the ground several times. The officers used ethnic slur by telling everyone at the precinct, "You Black niggers, is not coming in here to make a complaint". Ms. § 87(2)(b) further stated that there were several people beaten and arrested as well. Enclosure #1B

PO Tomins and PO O'Rourke, subject officers stated that a crowd went to the precinct and they wanted to remove the individuals that were arrested. The crowd tried to storm into the 73rd Precinct. Enclosure #30 & #38

PO Newton, witness officer stated that when she and her partner, PO Demorato went to handcuff the guys, who were writing on the ambulance, two other males came over and started to push and shove the them. At this time a crowd started to form and they were throwing rocks and bottles. § 87(2)(b)

§ 87(2)(b) PO Newton sustained injury § 87(2)(b) #26/23A

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SUMMARY OF FINDINGS AND RECOMMENDATIONS

ALLEGATION	CLASSIFICATION				FINDINGS AND RECOMMENDATIONS
	F	A	D	E	
A	X				INVESTIGATION CLOSED AS "UNSUBSTANTIATED"
B	X				INVESTIGATION CLOSED AS "UNSUBSTANTIATED"
C	X				INVESTIGATION CLOSED AS "UNSUBSTANTIATED"
D				X	INVESTIGATION CLOSED AS "UNSUBSTANTIATED"
E	X				INVESTIGATION CLOSED AS "UNSUBSTANTIATED"
F			X		INVESTIGATION CLOSED AS "UNSUBSTANTIATED"
G	X				INVESTIGATION CLOSED AS "UNSUBSTANTIATED"

TOTAL ENCLOSURES

INVESTIGATOR'S SIGNATURE

SUPERVISOR'S SIGNATURE

59 *D. Colon*

D. COLON

CCRB-25

ADDITIONAL REMARKS/COMMENTS (if Necessary)

C.C.R.B. No. 9400021

PO Newton stated that she used necessary force to place Ms. § 87(2)(b) under arrest. Ms. § 87(2)(b) was hanging on the back of one of the officers. PO Newton pulled her down and held her arms with one hand and handcuffed her with the other hand. #26A (PO Newton was a witness officer).

PO Demorato, subject officer stated that at the location of this incident a full riot broke out. PO Demorato was assaulted by a male named, § 87(2)(b), during this incident. Then § 87(2)(b) pushed PO Newton out of the way, in order, to get to PO Demorato. This same male grabbed PO Demorato by the shoulder and wrestled with him. Afterwards, there were bottles and rocks thrown. The officers (PO Newton & PO Demorato) called for assistance. PO Newton was thrown against a wall § 87(2)(b). PO Demorato stated that another male grabbed his thumb, trying to get him to release the male named, § 87(2)(b) who was handcuffed. § 87(2)(b)

PO Demorato further stated that § 87(2)(b) was arrested because he turned himself in, and § 87(2)(b) told PO Demorato, "Well, if you're locking up my friend, I ran away from you". At that time, Ms. § 87(2)(b) came out screaming and yelling, she was carrying on with the crowd. Ms. § 87(2)(b) was arrested § 87(2)(b). Enclosure #28 & #28A

PO Tomins and PO Pinello, subject officers stated that upon their arrival, they saw two individuals on PO Demorato (subject officer). PO Tomins and PO Pinello took the two individuals off PO Demorato and arrested them. PO Tomins and PO Pinello transported a female as well, who was already handcuffed. Enclosure #30 & #42

§ 87(2)(b) witness and § 87(2)(b), victim had interviews appointments, but failed to show. Additional calls were made to § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) were called several times, but they haven't response. Certified and regular letters were mailed to all the above mentioned individuals, but there was no response from them. Enclosures #8, #10, #17, #19, #9 A-C

§ 87(2)(b) didn't go to the hospital, because he didn't sustained any injury. #11A

PO Warson was alleged to be a subject officer, but results from "Request for Records", came back with negative results. #20 & #22

PO Caronsa was alleged to be another subject officer, but NYPD Roster showed negative results. Enclosure #32

SUMMARY OF FINDINGS AND RECOMMENDATIONS

ALLEGATION	CLASSIFICATION					FINDINGS AND RECOMMENDATIONS
	F	A	D	E		

TOTAL ENCLOSURES

INVESTIGATOR'S SIGNATURE

SUPERVISOR'S SIGNATURE

59

Dw Colon
D. COLON